

WITNESS EVIDENCE VIA LIVE VIDEO LINK IN THE CANADIAN CRIMINAL COURTROOM

*By Gary Botting and Hugh Trenchard**

Madam Justice Jacqueline Dorgan of the British Columbia Supreme Court in Victoria recently ruled that a jury in a sexual assault case could hear the sworn *viva voce* evidence of a defence witness in New Brunswick by live video link, obviating the usual requirement for out-of-province witnesses to travel to B.C. to testify. Ultimately, the testimony of the witness was of assistance in establishing that the accused did not have the opportunity to assault the complainant when and where she said he did, and the accused was acquitted by the jury. Although this was not the first time the technology of live video conferencing has been used in the Canadian courts, it is the first time evidence has been admitted in this manner in a criminal jury trial.

Defence counsel argued that the testimony of the witness in question was essential to the defence of the accused. The name and address of the witness had been disclosed to the Crown in a timely manner months before the trial in accordance with B.C. practice concerning alibi evidence (*R. v. Archibald* 1996, Court No. 83264, Victoria Registry).

Despite her disclaimer that she did not intend to set a precedent, the decision of Dorgan J. to allow use of the video link brings to the lower courts the prospect of using video television technology on a broader scale than has hitherto been accepted for the admission of witness testimony in both the civil and criminal justice systems. This process can significantly reduce inconvenience to witnesses and travel costs associated with bringing witnesses to British Columbia to testify.

In *Archibald*, the complainant had provided the police with varying statements with respect to the precise time at which the alleged offence occurred. Because of this inconsistent out-of-court evidence, it was uncertain what evidence the complainant would tender before the judge and jury. It was therefore also uncertain whether the evidence of the defence witness in New Brunswick would be of assistance to the court. Indeed, had the complainant provided evidence at the preliminary hearing consistent with the evidence she had given to the police, it would not have been necessary for the defence to call the out-of-province witness at all.

It was known that the evidence of the New Brunswick witness would not likely require longer than an hour to be given, since all he had to do was verify the alibi. Obviously it would be highly inconvenient to bring the witness from a remote area in New Brunswick served by one bus daily, and fly him from Fredericton to Victoria with two stopovers. Travel time each way would have been 17 hours, necessitating a three-day absence from New Brunswick College, where he was a student and in the middle of exams.

Quite apart from the inconvenience for the witness was the estimated \$3,500 expense for his travel and accommodation. Although the cash-strapped Legal Services Society of B.C. had issued a referral on the case and has a published policy of providing economy airfare for defence witnesses in criminal trials, it declined to pay the economy airfare for the witness, asking counsel to adduce the evidence by some other means.

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Dorgan J. accepted the defence application to set up a video link provided that facilities could be found that would comfortably accommodate the court, including the judge, the 12 jurors, the clerk, the court reporter, Crown counsel, defence counsel, the accused, the sheriff and several spectators. Since no courtroom in Victoria is equipped with the requisite technology, the decision meant bussing the jury to another building half a kilometre away. The decision, widely reported across Canada by television and print media, was publicly praised by B.C. Attorney-General Ujjal Dosanjh, who indicated that he endorsed any such money-saving measures that might be adopted by the court. The cost of the video link was estimated at about \$300 per hour, about one-tenth the cost of the airfare.

The Supreme Court of Canada has long allowed counsel outside Ottawa to use video links for their submissions in both civil and criminal matters. Video conferencing was formally adopted in 1991 by the Supreme Court of Canada for use by counsel in presenting submissions before the Supreme Court (see Notice to the Profession, October 1991 — Rules of the Supreme Court of Canada).

The Ontario Court of Appeal issued a similar Practice Direction in December of 1995 (O.C.A. Practice Direction, December 18, 1995).

The implications of allowing counsel's submissions in appeal hearings to be made by video link are much less profound than the implications of hearing *viva voce* evidence in that manner from witnesses outside the courtroom walls. Perhaps it is for this reason that Canadian lawyers, judges and legislators have been reluctant to use available technology such as the video link on a broader scale.

The standard argument against acceptance of evidence by electronic means is that the jury may not be able to see the nuances of expression of a witness as he or she testifies. However, this is not borne out by the experience of those who have used the most recent video technology; the value of the close-up frame is that facial expressions of the witness are captured, as well as the body language that could normally be seen by the jury from the witness stand. Furthermore, the facial expressions of examining counsel are seen by the witness, who is aware that he or she must respond immediately to the questions put as the jury looks on.

Canadian courts have been slow to allow for the reception of evidence in this manner. Yet recent developments lend hope that electronic innovations that characterize our age will not forever be ignored by the courts.

Civil courts have made sparing use of the live video link for the admission of expert testimony (see for example *Freeswick v. Forbes* [1996], O.J. No. 1466, Court File No. 4749/90). Child witnesses who may be subject to trauma or intimidation have been allowed to present evidence from a location outside the courtroom by way of closed-circuit television in criminal trials. This has been permitted mainly in cases involving allegations of sexual assault (s. 486(2.2) of the *Criminal Code*). In *R. v. Nikolovski* (December 12, 1996, (24360) S.C.C. [1996] S.C.J. No. 122), the Supreme Court of Canada ruled that a video camera accurately recorded all it perceived and therefore its content could be regarded in itself as clear and convincing evidence. That case concerned the identification of the accused by a judge from a videotape of a robbery where an eye-witness to the robbery could not identify the accused.

Interestingly, several Canadian quasi-judicial tribunals routinely use various forms of communications technology for the gathering of sworn *viva voce* evidence, most notably the Immigration and Refugee Appeal Board, which often uses a much less effective audio link for receiving evidence of witnesses in other centres across the country.

Several other countries have been making extensive use of modern technology for this purpose for decades. The American courts began close scrutiny of the issue more than 20 years ago.

In *Kansas City v. McCoy*, 525 S.W. 2d 336 (Mo., 1975) closed-circuit television was used to bring the testimony of a witness before the court. Subsequently, a considerable body of American jurisprudence has developed surrounding the issue of whether the admission of out-of-court evidence by video link violates the American Sixth and Fourteenth Amendment right to confrontation and other corollary rights (see 61 A.L.R. 4th 1155).

Several Australian jurisdictions have recently legislated the use of the live video link for the transmission of *viva voce* evidence. (*Evidence (Closed Circuit Television) Act*, 1992 (ACT); *Evidence (Closed Circuit Television) Amendment Act*, 1994 (ACT); *Evidence Act*, 1929 (S.A.) s. 13(2)). Previous to that the United Kingdom legislated the use of this technology for a live video link between the courtroom and witnesses located *outside* the country (*Criminal Justice Act*, 1988 c. 33, s. 32). Given the comparatively small geographical size of the United Kingdom and the relative expediency of bringing a witness in person to a court anywhere within the nation, one can speculate that the British legislators recognized that it was unnecessary to call for a link between locations within the country itself.

It is evident from the American experience that certain minimal guidelines will need to be established in Canada as well for the admission of *viva voce* evidence via a live video link (see 61 A.L.R. 4th, p. 1159).

Like the U.S. and Australia, Canada has a vast expanse and multiple juridical jurisdictions; the economic advantages of a live video link between different jurisdictions within the country are obvious.

As a new millennium looms, it behooves Canadian courts to adapt quickly to innovations in technology. Arguably at least one room in each major court house should contain the necessary technology to enable the reception of evidence by video link so that juries and court staff are not inconvenienced by the requirement to travel to other facilities.

Equipping courts with state-of-the-art technology need not necessarily entail a major capital expense for equipment, since several Canadian companies compete to provide the service on a user or contract basis, processes familiar to the courts in the technologically sophisticated domain of court reporting. But even if it became necessary in the courtrooms of tomorrow to invest in electronic hardware, the long-term economic advantages of hearing *viva voce* evidence by video link rather than transporting witnesses from far-flung corners of Canada are inestimable.

Editor's note: Apropos the Botting and Trenchard article, our readers may be interested to know that on February 10, 1997, legal history was made in the Vancouver Provincial Courthouse at 222 Main Street when Judge Kitchen conducted a disposition hearing by remote appearance. The accused Ming Tao Chiu appeared by video remote from Hong Kong and the co-accused Chiang Han Liu appeared by video remote from Taipei, Taiwan. Judge Kitchen adopted the written submissions of Crown Counsel, Thomas E. Burns, from the pre-trial conference as the basis for jurisdiction to utilize this procedure. A copy of the written submissions may be obtained from Mr. Burns, at the Crown Counsel office, 222 Main Street, Vancouver, B.C. V6A 2S8.

Both accused were put to their elections and they elected a Provincial Court trial. Each accused then entered a plea of guilty to a charge of threatening. Full sentence submissions were made by both the Crown and defence. At one point during the proceedings the accused communicated privately with counsel in the courtroom by telephone. The court imposed a \$10,000 fine against Mr. Liu and a \$20,000 fine against Mr. Chiu.

Boyd Williams from Adcom provided the technical expertise for the remote appearance. The Province of British Columbia paid for expenses associated with the Vancouver end of the transmission. That consisted of modifications to the courtroom

and the provision of technical equipment and staff in the courtroom. The defence bore all the cost associated with the attendance of the accused at the production facilities abroad and the transmission of the various signals to Vancouver.

British Columbia has advocated amendments to the *Criminal Code* for several years to permit remote appearances and the use of other modern technology in appropriate cases. Bill C-17 proposes some amendments to facilitate video appearances by inmates for routine administrative matters. Bill C-17 has received second reading. British Columbia and New Brunswick have strongly advocated the enactment of Bill C-17.

Other proposals by British Columbia would extend technological enhancements to permit remote appearances by counsel and other applicants. The legislation would also encourage remote appearances across traditional jurisdictional boundaries. *R. v. Archibald* and *R. v. Chiu and Liu* both represent enlightened innovations in access to justice. We hope that future developments will see continued attempts to modernize court procedure.



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